

■ ■ PHASE III — DO NOT INTRODUCE BEFORE PRECONDITIONS ARE MET

This bill is the most constitutionally complex, the most politically exposed, and the most likely to trigger the exact backlash that ends a governing coalition prematurely. The sequencing rule applies here more strictly than anywhere else: this bill is the reward for succeeding at everything before it, not the entry point.

Reform Democrats of the New Commonwealth · Project ARA 2028

Legislative Ecosystem Document Leg12 of Leg14

Democratic Institutions Reform Act

Bill Framework & Legislative Brief

Phase III · Track C · Governance Reform · Bill 11 of 12

LEGAL DISCLAIMER — POLICY DISCUSSION DOCUMENT

This document is a policy discussion framework and bill scaffold. It is not formally introduced legislation, has not been reviewed by licensed legislative counsel, and does not constitute legal advice of any kind.

All provisions marked [TBD] — including dollar amounts, specific IRC section numbers, penalty thresholds, appropriation amounts, and CBO scoring figures — require resolution by licensed legislative drafting counsel (the Office of Legislative Counsel for the House or Senate, as applicable), relevant agency technical staff, and the Congressional Budget Office before introduction as formal legislation.

Constitutional arguments, legal analyses, and statutory framings presented herein are analytical assessments developed for policy planning purposes. They are not legal opinions and have not been reviewed or validated by licensed legal counsel. This document identifies constitutional and legal risks requiring independent review — those identifications are planning guidance, not legal conclusions.

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Consultation with licensed legislative counsel, the Department of Justice Office of Legal Counsel, the Federal Election Commission, the Election Assistance Commission, the Department of Justice Civil Rights Division, the Congressional Budget Office, and Senate Judiciary and Rules and Administration Committee constitutional counsel is required before any framework in this series may be introduced as formal legislation. Distribution is subject to RDNC classification protocols (REF_ layer: internal use and trusted partners only).

■ ■ PHASE III — PRECONDITIONS FOR INTRODUCTION

This bill must NOT be introduced before all of the following conditions are met:

- ✓ Phase I and II wins have created durable, politically entrenched constituencies
- ✓ At least two Supreme Court appointment opportunities have occurred, altering the constitutional landscape
- ✓ State-level campaign finance reforms have built precedent and demonstrated viability
- ✓ Anti-Corruption bill (ACFM Act, Bill 3) has been operational — public has seen the contrast between reform and status quo
- ✓ A political alignment exists — Senate supermajority, or constitutional amendment pathway via state conventions
- ✓ The broader reform agenda is sufficiently popular that governance reform reads as protecting gains, not as partisan power grab

Part I — Legislative Brief

This is the governance reform bill — Citizens United, Supreme Court structure, campaign finance, and the democratic foundations that everything else depends on. It is also the most constitutionally complex, the most politically exposed, and the most likely to trigger the exact backlash that ends a governing coalition prematurely. The sequencing rule applies here more strictly than anywhere else. Sec 3 anchors the four-axis constitutional foundation in operative bill text. The bill maintains a Two-Track architecture (statutory + constitutional amendment) as the DIR-specific variant of the C-with-B-fallback pattern: Track A (statutory) is the primary route where court composition allows; Track B (Article V

amendment) is the operative fallback where statutory route is blocked.

AT A GLANCE

Bill Title	Democratic Institutions Reform Act
Short Title (Cite As)	The DIR Act
Legislative Vehicle	Constitutional Amendment (two-thirds Congress + three-fourths States) and/or Statutory (if court composition allows)
Phase / Track	Phase III · Track C · Year 10–20 (conditions-dependent)
Primary Committees	Senate Judiciary; Rules and Administration
Dependencies	See preconditions block above. Constitutional strategy depends on court composition at time of introduction.
Core Framing	“Protecting the gains we made. Making sure the next government can’t undo what this one built.”
Constitutional / Statutory Risk	Highest in the bill series. Multi-axis exposure on Article III Good Behavior (term limits), Elections Clause (redistricting), Article V (amendment route, post-Callais), and First Amendment (campaign finance, Citizens United / McCutcheon / AFPP v. Bonta narrow tailoring). Sec 3 anchors the four-axis foundation in operative bill text.
Architecture	Two-Track (Statutory / Constitutional Amendment) — DIR-specific variant of the C-with-B-fallback pattern. Track A (statutory) is the primary route operative where court composition allows broader campaign finance regulation and where Article III analysis supports senior-status term limits. Track B (Article V constitutional amendment) is the operative fallback for Citizens United narrowing if Track A is blocked, and is the operative pathway for state-legislative redistricting commissions post-Louisiana v. Callais.
Fallback Position	Ethics and transparency reforms only — expand ACFM Act (Bill 3) provisions. State-level ranked-choice voting and districting reform continue through state action without federal legislation. Build the map; let the constitutional fights come when the map is favorable.
Note	This bill has the most structural variation in the series depending on conditions at time of introduction. Track selection is reserved for constitutional counsel review at that time.

What This Bill Does:

- Establishes Supreme Court term limits** via senior-status model. Eighteen-year staggered active terms for all future Justices, with senior status thereafter — Justice retains the office, active service ends, full compensation continues. Eliminates the lifetime-appointment dynamic that has turned confirmation into a generational political battle and incentivizes the most extreme possible nominees. Sec 3(a) anchors the Article III “Good Behavior” constitutional argument in operative bill text.
- Addresses campaign finance through a Two-Track architecture.** Track A (statutory) becomes operative if and when the Supreme Court has narrowed Citizens United v. FEC (2010) to permit broader regulation. Track B (constitutional amendment via Article V) is the operative fallback where Track A is blocked. Track B is the realistic path under current Court composition. Sec 5 includes the Foreign National Prohibition under Bluman v. FEC (2012) authority, which is constitutionally settled and operative regardless of track selection.
- Restores and expands voting rights protections.** Automatic voter registration under Elections Clause authority (Art. I §4); Federal Election Day public holiday; congressional redistricting commissions per AIRC (2015) / Moore v. Harper (2023) — constitutionally sound regardless of post-Callais landscape; ranked-choice voting for federal elections.
- Restructures state-legislative redistricting per Louisiana v. Callais (April 29, 2026).** Callais reinterpreted VRA Section 2 to require intentional discrimination, eliminating the results-based Gingles foundation. Sec 7(d) accordingly conditions state-legislative redistricting commissions on Track B (Article XXIX ratification) rather than VRA Section 2

authority. Federal redistricting (Sec 7(c)) remains constitutionally sound under Elections Clause and is not affected by Callais.

5. **Expands federal ethics and accountability standards.** Builds on the ACFM Act (Bill 3) to create a comprehensive framework including conduct standards, enforcement mechanisms, and accountability for violations of democratic norms. Coordinated through Sec 502 to avoid overlap with ACFM authority.

6. **Implements through Title V coordination architecture.** Sec 501 timeline; Sec 502 FEC, EAC, DOJ Civil Rights Division, and OLC coordination; Sec 503 annual reporting on implementation, ratification progress for Track B, and any litigation status affecting operative provisions.

Two Legislative Tracks:

This bill requires different legal strategies depending on conditions at introduction. **Track A is statutory** — it works if the Supreme Court has evolved to permit broader campaign finance regulation and if Article III analysis supports the senior-status term-limits model. **Track B is constitutional amendment** — it works if a two-thirds Congressional majority and three-fourths of States can be assembled. The bill framework below covers both tracks with provisions that survive either path. Track-specific provisions are explicitly labeled and require constitutional counsel review at time of introduction.

ATTACK SURFACE	"Power grab." "Court packing." "Abolishing free speech." "Rigging elections." These attacks are all pre-loaded. They are also significantly weaker when they come after 10+ years of demonstrated RDNC governance competence.
DEFENSE STRATEGY	Frame entirely as protection and stability: "We're making sure what we built can't be dismantled by the next administration." Term limits poll at 70%+. Voting rights are a majority position. Start there. Campaign finance reform follows as the explanation for why the system was captured in the first place.
FALLBACK POSITION	Ethics and transparency reforms only — expand ACFM Act (Bill 3) provisions. This is meaningful without constitutional fights. State-level ranked-choice voting expansion and districting reform can continue through state action without federal legislation. Build the map; let the constitutional fights come when the map is favorable.

Part II — Bill Framework

Two tracks: Track A (statutory), Track B (constitutional amendment). Core provisions applicable to both tracks are included below. Track-specific provisions require constitutional counsel review at time of introduction.

119TH CONGRESS OR SUBSEQUENT SESSION S. ____

To reform campaign finance and lobbying practices; to establish term limits for Supreme Court Justices; to strengthen voting rights and election integrity; to expand federal ethics and accountability standards; and for other purposes.

IN THE SENATE OF THE UNITED STATES

Mr./Ms. _____ introduced the following bill; which was referred to the Committee on the Judiciary.

A B I L L

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE.

This Act may be cited as the "Democratic Institutions Reform Act" or the "DIR Act".

SEC. 2. FINDINGS AND PURPOSE.

(a) FINDINGS.—Congress finds the following:

- (1) Concentrated campaign spending enabled by *Citizens United v. Federal Election Commission*, 558 U.S. 310 (2010), and *McCutcheon v. Federal Election Commission*, 572 U.S. 185 (2014), has produced documented policy outcomes favoring upper-income interests at the expense of broad public welfare.
- (2) Lifetime appointments to the Supreme Court have produced an adversarial confirmation dynamic that incentivizes extreme nominees and destabilizes public confidence in the judiciary, while the senior-status structure under section 294 of title 28, United States Code, demonstrates that judicial service can be restructured without removing a judge from the office to which the judge was appointed.
- (3) Partisan gerrymandering produces districts mathematically unresponsive to voter preference shifts, undermining democratic accountability.
- (4) Automatic voter registration and ranked-choice voting have improved representational outcomes in the jurisdictions that have adopted them.
- (5) Foreign-national contributions and expenditures in connection with United States elections are prohibited under settled constitutional doctrine, sustained unanimously in *Bluman v. Federal Election Commission*, 800 F. Supp. 2d 281 (D.D.C. 2011), summarily affirmed, 565 U.S. 1104 (2012).
- (6) *Louisiana v. Callais* (608 U.S. ___, decided April 29, 2026) reinterpreted section 2 of the Voting Rights Act of 1965 to require proof of intentional discrimination, materially altering the

constitutional anchor for state-legislative redistricting commission mandates and requiring their restructuring through Article V amendment pathway.

(b) PURPOSES.—The purposes of this Act are—

- (1) to establish term limits for Justices of the Supreme Court through a senior-status model consistent with Article III of the Constitution;
- (2) to provide a Two-Track architecture for campaign finance reform — statutory under Track A where court composition permits, and constitutional amendment under Track B as the operative fallback;
- (3) to prohibit foreign-national contributions and expenditures in connection with Federal elections, consistent with *Bluman v. Federal Election Commission*;
- (4) to expand voting rights protections, including automatic voter registration, a Federal Election Day public holiday, and ranked-choice voting in Federal elections;
- (5) to mandate independent congressional redistricting commissions consistent with *Arizona State Legislature v. Arizona Independent Redistricting Commission*, 576 U.S. 787 (2015), and *Moore v. Harper*, 600 U.S. 1 (2023);
- (6) to restructure state-legislative redistricting commission mandates as conditional on Track B ratification, post-*Louisiana v. Callais*; and
- (7) to expand federal ethics and accountability standards in coordination with the Anti-Corruption and Financial Misconduct Act (Bill 3 of this sequence).

SEC. 3. CONSTITUTIONAL FOUNDATION.

The provisions of this Act shall be construed and implemented consistent with the following constitutional framings:

(a) ARTICLE III GOOD BEHAVIOR CLAUSE.—The senior-status structure established under section 4 does not violate the Good Behavior Clause of Article III, section 1. A Justice transitioning to senior status retains the office of Justice of the Supreme Court, continues to receive the compensation appertaining to that office, and remains eligible to serve on circuit courts under section 294 of title 28, United States Code. The structure parallels the long-established senior-status framework under section 371 of title 28, sustained in *Booth v. United States*, 291 U.S. 339 (1934). U.S. Term Limits, Inc. v. Thornton, 514 U.S. 779 (1995), is distinguishable: it addressed state action regulating Congress where Article I enumerates exclusive qualifications; Article III contains no enumerated judicial qualifications, and section 4 does not add qualifications but restructures duties.

(b) ELECTIONS CLAUSE / ARTICLE I, SECTION 4.—Federal authority to mandate independent congressional

redistricting commissions, automatic voter registration for Federal elections, ranked-choice voting in Federal elections, and a Federal Election Day public holiday is grounded in the Elections Clause, U.S. Const. art. I, sec. 4, cl. 1, as construed in *Arizona State Legislature v. Arizona Independent Redistricting Commission*, 576 U.S. 787 (2015), and *Moore v. Harper*, 600 U.S. 1 (2023). The Elections Clause grants Congress plenary authority to regulate the manner of Federal elections.

(c) ARTICLE V AMENDMENT PATHWAY.—The constitutional amendment proposed under section 6 (Article XXIX) is submitted under the congressional-proposal route of Article V (two-thirds of each House) rather than the state-convention route, in light of runaway-convention risk under current law and the absence of Article V boundary jurisprudence. The seven-year ratification deadline included in proposed Article XXIX, section 3, is consistent with *Dillon v. Gloss*, 256 U.S. 368 (1921), and subsequent practice.

(d) FIRST AMENDMENT / NARROW TAILORING.—Campaign finance regulation under section 5 (Track A) and proposed Article XXIX (Track B) shall be construed to advance the compelling governmental interest in preventing corruption and the appearance of corruption, as recognized in *Buckley v. Valeo*, 424 U.S. 1 (1976), and as bounded by *Citizens United v. Federal Election Commission*, 558 U.S. 310 (2010), and *McCutcheon v. Federal Election Commission*, 572 U.S. 185 (2014), unless and until those decisions are narrowed or superseded. Disclosure provisions shall be narrowly tailored consistent with *Americans for Prosperity Foundation v. Bonta*, 594 U.S. 595 (2021).

SEC. 4. SUPREME COURT TERM LIMITS.

[STATUTORY TRACK – Requires Article III analysis; OLC opinion required before introduction.]

(a) IN GENERAL.—Associate Justices of the Supreme Court appointed after the date of enactment shall serve active terms of 18 years, after which they shall assume senior status.

(b) SENIOR STATUS.—A Justice in senior status shall remain eligible to serve on circuit courts and shall continue to receive full compensation. The Justice retains the office of Justice of the Supreme Court for purposes of Article III, section 1.

(c) VACANCY SCHEDULE.—A vacancy on the Supreme Court shall occur every two years, with the President nominating and the Senate confirming a replacement within [TBD] months.

(d) CURRENT JUSTICES.—Nothing in this section shall be construed to apply to any Justice serving on the date of enactment. Such Justices shall serve under the terms and conditions of their original appointments.

(e) ARTICLE III SAVINGS.—If any provision of this section is held to violate Article III by final judgment of a court of competent jurisdiction, this section shall

be inoperative and the term-limits provisions shall be implemented through Article V amendment under Track B, consistent with section 8 (severability).

SEC. 5. CAMPAIGN FINANCE REFORM – TRACK A (STATUTORY).

[Track A is operative if and when the Supreme Court has narrowed *Citizens United v. FEC* (2010) and *McCutcheon v. FEC* (2014) to permit the regulations in subsections (a) and (b). Subsection (c) (foreign national prohibition) is constitutionally settled under *Bluman* and is operative regardless of track selection.]

(a) AGGREGATE CONTRIBUTION LIMITS.—No person or entity may contribute more than \$[TBD] in the aggregate to all Federal candidates, parties, and political action committees in any two-year election cycle.

(b) DISCLOSURE REQUIREMENTS.—

(1) IN GENERAL.—All contributions exceeding \$[TBD] shall be publicly disclosed within [TBD] days of receipt. No anonymous contributions shall be made to any entity that makes independent expenditures.

(2) NARROW TAILORING.—Disclosure requirements under this subsection shall be narrowly tailored to the compelling anti-corruption interest, consistent with *Americans for Prosperity Foundation v. Bonta*, 594 U.S. 595 (2021), and shall include confidentiality protections for sensitive categories of disclosure.

(c) FOREIGN NATIONAL PROHIBITION.—No foreign national, foreign government, or entity owned or controlled by a foreign national or foreign government shall make any contribution or expenditure in connection with any Federal, State, or local election, consistent with section 30121 of title 52, United States Code, and *Bluman v. Federal Election Commission*, 800 F. Supp. 2d 281 (D.D.C. 2011), summarily affirmed, 565 U.S. 1104 (2012). This subsection is operative regardless of the applicability of subsections (a) and (b).

SEC. 6. CAMPAIGN FINANCE REFORM – TRACK B (CONSTITUTIONAL AMENDMENT).

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled (two-thirds of each House concurring therein), That the following article is proposed as an amendment to the Constitution of the United States, which shall be valid to all intents and purposes as part of the Constitution when ratified by the legislatures of three-fourths of the several States:

"ARTICLE [XXIX]

"SECTION 1. Congress and the States may regulate the raising and spending of money in Federal and State elections to advance the compelling governmental interest in preventing corruption and the appearance of

corruption, and to ensure that all citizens have an equal opportunity to participate in the political process.

"SECTION 2. Nothing in this article shall be construed to grant Congress or the States the power to abridge the freedom of the press, or the right of any person to engage in independent issue advocacy.

"SECTION 3. This article shall be inoperative unless it shall have been ratified as an amendment to the Constitution by the legislatures of three-fourths of the several States within seven years from the date of its submission to the States by the Congress."

SEC. 7. VOTING RIGHTS AND ELECTION INTEGRITY.

(a) AUTOMATIC VOTER REGISTRATION.—

(1) IN GENERAL.—Each State shall automatically register eligible citizens to vote when they interact with government agencies, unless the citizen opts out.

(2) PURCELL-PRINCIPLE COMPLIANCE.—Implementation timelines under this subsection shall provide a minimum 12-month lead time before any election cycle to avoid late-implementation challenges under *Purcell v. Gonzalez*, 549 U.S. 1 (2006).

(3) PREEMPTION.—This subsection preempts State laws that are less protective of voter registration access, consistent with the National Voter Registration Act of 1993 framework.

(b) FEDERAL ELECTION DAY HOLIDAY.—Election Day for Federal elections shall be a public holiday. This subsection is grounded in Elections Clause authority and is independent of and not duplicative of any provision of the COLT Act (Bill 1 of this sequence).

(c) TRACK A – CONGRESSIONAL REDISTRICTING.—

Congressional districts shall be drawn by independent redistricting commissions in each State, consistent with Federal standards established by the Election Assistance Commission. This subsection applies to congressional districts only and is constitutionally sound under Elections Clause authority and *Arizona State Legislature v. Arizona Independent Redistricting Commission*, 576 U.S. 787 (2015), regardless of *Louisiana v. Callais*.

(d) TRACK B – STATE LEGISLATIVE REDISTRICTING (CONSTITUTIONAL AMENDMENT PATHWAY).—

(1) POST-CALLAIS NOTE.—*Louisiana v. Callais* (608 U.S. ___, April 29, 2026) reinterpreted section 2 of the Voting Rights Act of 1965 to require proof of intentional discrimination. A statutory Track A mandate for state-legislative redistricting commissions may no longer rely on Voting Rights Act section 2 as its constitutional anchor. State-legislative redistricting commissions therefore require Track B (constitutional amendment) or a specific legislative findings record establishing

intentional discrimination in the target jurisdictions.

(2) OPERATIVE UPON RATIFICATION.—Upon ratification of the article proposed under section 6 (Article XXIX) or a superseding redistricting amendment, each State shall establish an independent redistricting commission for State legislative districts, consistent with such Federal standards as Congress may prescribe pursuant to the ratified amendment and section 1 of the Fourteenth Amendment.

(e) RANKED-CHOICE VOTING.—Federal elections shall use ranked-choice voting in all States that have not adopted an alternative system achieving comparable representational outcomes, as certified by the Election Assistance Commission.

SEC. 8. SEVERABILITY AND TRACK FALLBACK.

(a) SEVERABILITY.—If any provision of this Act, or the application of any provision to any person or circumstance, is held invalid by final judgment of a court of competent jurisdiction, the remainder of the Act and the application of the provision to other persons and circumstances shall not be affected.

(b) TRACK A INVALIDATION FALLBACK.—If section 4 (Supreme Court Term Limits) or section 5(a) or 5(b) (Aggregate Contribution Limits and Disclosure Requirements) is invalidated by final judgment, the Act shall continue to operate under—

- (1) section 5(c) (Foreign National Prohibition, constitutionally settled under Bluman);
- (2) section 6 (Article XXIX), upon ratification;
- (3) section 7(a), (b), (c), and (e) (voting rights provisions grounded in Elections Clause authority); and
- (4) Title V (Implementation and Oversight).

(c) NO INTERRUPTION.—The invalidation of any Track A provision shall not interrupt operations or implementation under provisions independently grounded in Elections Clause, Bluman, or settled constitutional authority.

TITLE V—IMPLEMENTATION AND OVERSIGHT

SEC. 501. IMPLEMENTATION TIMELINE.

(a) IN GENERAL.—The Attorney General, in coordination with the Federal Election Commission, the Election Assistance Commission, and the Office of Legal Counsel, shall implement the provisions of this Act according to the following schedule:

- (1) Within [TBD] months of enactment: the Office of Legal Counsel shall issue an opinion on the Article III analysis supporting section 4 (Supreme Court Term Limits).
- (2) Within [TBD] months of enactment: the Federal Election Commission shall publish initial

regulations implementing section 5 (Track A) and section 5(c) (Foreign National Prohibition).

(3) Within [TBD] months of enactment: the Election Assistance Commission shall publish Federal standards for congressional redistricting commissions under section 7(c).

(4) Not earlier than [TBD] months after publication of regulations under paragraph (2): the Federal Election Commission shall begin enforcement under section 5.

(5) Automatic voter registration under section 7(a) shall be implemented with a minimum 12-month lead time before the next Federal election cycle, consistent with *Purcell v. Gonzalez*.

(b) TRACK B RATIFICATION COORDINATION.—Upon proposal of Article XXIX under section 6, the Department of Justice shall publish ratification status updates not less than annually until the article is ratified or the seven-year ratification period under proposed Article XXIX, section 3, expires.

SEC. 502. AGENCY COORDINATION.

(a) IN GENERAL.—The Attorney General, the Federal Election Commission, the Election Assistance Commission, the Department of Justice Civil Rights Division, the Office of Legal Counsel, and the Office of Government Ethics shall coordinate implementation of this Act, with particular attention to—

- (1) Article III analysis under section 4 and coordination of any litigation defense;
 - (2) First Amendment and Bluman analysis under section 5;
 - (3) Elections Clause and post-*Callais* analysis under section 7;
 - (4) ratification coordination under section 6;
- and
- (5) ethics framework coordination with the Anti-Corruption and Financial Misconduct Act (ACFM, Bill 3 of this sequence) to avoid duplicative authority and ensure consistent enforcement standards.

(b) CONSTITUTIONAL DEFENSE COORDINATION.—The Attorney General shall maintain operational readiness for Track B fallback under section 8(b), including—

- (1) draft litigation positions defending section 4 under *Booth v. United States* and the senior-status framework, ready for assertion in any challenge to the term-limits provisions; and
- (2) inter-agency coordination protocols for seamless transition from Track A to Track B operative status upon final judgment or upon ratification of Article XXIX.

SEC. 503. ANNUAL REPORTING.

Not later than [TBD] of each calendar year, the Attorney General, in coordination with the Federal

Election Commission and the Election Assistance Commission, shall submit to Congress, and shall publish for public review, an annual report including—

- (1) implementation status of each section of this Act, with breakdown by Track A / Track B operative status;
- (2) Track B ratification status, with State-by-State accounting and projected timeline to three-fourths threshold;
- (3) any litigation, ruling, or stay affecting operative provisions, with assessment of impact on Track A / Track B operative status;
- (4) post-Callais state-legislative redistricting landscape, including any State-level findings records establishing intentional discrimination;
- and
- (5) coordination status with the Anti-Corruption and Financial Misconduct Act framework under section 502(a)(5).

All dollar amounts, penalty thresholds, time periods, and statutory cross-references marked [TBD] require resolution by licensed legislative counsel, the Office of Legal Counsel, the Federal Election Commission, and the Congressional Budget Office before introduction as formal legislation. Track selection between Track A (statutory) and Track B (constitutional amendment) is reserved for constitutional counsel review at time of introduction, based on then-current Supreme Court composition and jurisprudence. See Part III counsel notes.

Part III — Notes for Congressional Counsel

All [TBD] items and constitutional questions below require resolution before introduction. Track selection between Track A (statutory) and Track B (constitutional amendment) is reserved for constitutional counsel review at time of introduction.

Sec 3 Constitutional Foundation — multi-axis architecture	Four-axis foundation in operative bill text: Article III Good Behavior (term limits architecture; Booth v. United States 1934 foundation, 28 U.S.C. §§294/371 senior-status framework; Term Limits v. Thornton distinguished as Article I exclusive-qualifications case), Elections Clause / Article I §4 (AIRC 2015 / Moore v. Harper 2023 — congressional redistricting, AVR, ranked-choice voting, Election Day holiday all grounded here), Article V (congressional-proposal route preferred over state-convention route given runaway-convention risk; Dillon v. Gloss 1921 ratification deadline framework), and First Amendment narrow-tailoring (Buckley / Citizens United / McCutcheon / AFPP v. Bonta 2021).
Sec 4 Supreme Court term limits — Article III analysis [Source 261]	Good Behavior clause has never been definitively interpreted to bar term limits. The senior-status model (active service ends after 18 years, Justice retains the office, receives full compensation, eligible for circuit duty under 28 U.S.C. §294) is grounded in Booth v. United States (1934) and the long practice of 28 U.S.C. §371. U.S. Term Limits, Inc. v. Thornton (1995) [Source 261] is DISTINGUISHABLE: it addressed state action regulating Congress where Article I enumerates exclusive qualifications; Article III contains no enumerated judicial qualifications; the senior-status model does not add qualifications but restructures duties. Strongest counterargument (Calabresi, Prakash): Article III's "one supreme Court" contemplates Justices who must decide its cases. No OLC opinion has been published — an OLC opinion is REQUIRED before Track A introduction. The Biden Presidential Commission (Dec. 2021) found considerable bipartisan support but declined to endorse statutory vs. constitutional path. Sec 4(e) Article III savings provision binds Track B fallback if invalidated.
Sec 5 Campaign finance — Track B is the operative path [Sources 262, 263]	Citizens United v. FEC (2010) [Source 262] struck BCRA §203 corporate/labor independent expenditure ban. McCutcheon v. FEC (2014) [Source 263] struck biennial aggregate contribution limits while preserving base limits, narrowing cognizable corruption to quid pro quo only. Under the current Court (6-3 conservative majority), overruling Citizens United is implausible. TRACK A CONDITION: Track A statutory campaign finance under Sec 5(a) and 5(b) is conditioned on Citizens United being narrowed by subsequent Supreme Court decisions. This condition is unlikely to be satisfied. TRACK B is the operative legislative path. Invest in the Article V strategy. Sec 5(c) Foreign National Prohibition is constitutionally settled under Bluman and is operative regardless of track selection.
Sec 5(c) Foreign National Prohibition — restored from original	Restored from the original-version structure. Anchored in 52 U.S.C. §30121 (Federal Election Campaign Act) and Bluman v. FEC, 800 F. Supp. 2d 281 (D.D.C. 2011), summarily affirmed, 565 U.S. 1104 (2012). The Bluman court held that foreign-national exclusion from U.S. political process is consistent with the First Amendment as applied to non-resident foreign citizens. Three-judge panel decision was unanimous, summarily affirmed by the Supreme Court without argument. This provision is operative regardless of track selection (Sec 8(b)(1)) — it does not depend on Citizens United narrowing.
Maine super-PAC litigation — most viable Citizens United narrowing vehicle [Source 269]	Maine voters approved Question 1 (Nov. 2024, 74%) capping super-PAC contributions at \$5,000. Magistrate Judge Wolf (D. Me.) issued a permanent injunction July 15, 2025. Maine AG Frey and intervenors appealed to the First Circuit (Oct. 2025) — the ONLY circuit not to have ruled on SpeechNow. This is the most viable Citizens United narrowing vehicle currently before the courts. If the First Circuit upholds the Maine cap, a cert vehicle for Fall 2026 Term arises. Even a favorable Supreme Court outcome would likely produce a narrow ruling (coordination doctrine or foreign-influence restriction — Bluman [Source 269]) rather than overruling Citizens United wholesale. Monitor closely; do not trigger Track A on this basis without full briefing.

Sec 6 Track B Article XXIX — savings clause and ratification deadline [Source 270]	The overbroad savings clause from the original (“Nothing in this article shall abridge freedom of speech or press”) has been replaced with: “Nothing in this article shall be construed to grant Congress or the States the power to abridge the freedom of the press, or the right of any person to engage in independent issue advocacy.” This tracks the Democracy for All Amendment model and avoids the self-defeating framing that subordinated the regulatory grant to <i>Buckley v. Valeo</i> . A ratification deadline (Section 3 of Article XXIX) has also been added per <i>Dillon v. Gloss</i> (1921) [Source 270]: seven years from submission. Counsel should confirm the seven-year period is appropriate given the amendment’s scope and the expected state ratification timeline.
Sec 7(c) congressional redistricting — sound regardless of Callais [Sources 264, 265]	AIRC (2015) [Source 264] confirmed independent redistricting commissions are constitutional for congressional districts under the Elections Clause. <i>Moore v. Harper</i> (2023) [Source 265] rejected the maximalist Independent State Legislature theory while affirming AIRC. The DIR Act Sec 7(c) congressional redistricting commission mandate is constitutionally sound and tracks the Elections Clause authority directly. No further revision is required regardless of <i>Louisiana v. Callais</i> , which addressed VRA Section 2 — a different constitutional anchor.
Sec 7(d) state-legislative redistricting — Track B post-Callais [Source 266]	APPLIED IN BILL TEXT (DIR_6): <i>Louisiana v. Callais</i> (608 U.S. ___, April 29, 2026) [Source 266], Alito, J., 6-3, reinterpreted VRA Section 2 to require intentional discrimination — effectively converting the results-based Gingles test to an intent-based standard. Kagan dissent: Section 2 is all but a dead letter. REVISION APPLIED: Sec 7(c) applies to congressional districts only (constitutionally sound under Elections Clause/AIRC regardless of Callais). Sec 7(d) is conditioned on Track B (Article XXIX ratification) rather than VRA Section 2 authority. A post-Callais note in Sec 7(d)(1) explains the constitutional constraint. For counsel: if a Track A state-legislative mandate is pursued in the future, it requires a specific legislative findings record establishing intentional discrimination in target jurisdictions, per Callais.
Sec 7(b) Federal Election Day Holiday — restored from original	Restored from the original-version structure. The original flagged this provision as potentially duplicative with the COLT Act (Bill 1). Verification confirms COLT Sec 102 is the Direct File mandate (tax filing) and does NOT establish a Federal election day holiday. Sec 7(b) is therefore not duplicative and is restored under Elections Clause authority. Counsel should re-verify against COLT canonical text at time of introduction in case of intervening amendments.
Sec 7(a) automatic voter registration — Elections Clause authority	Federal authority over the manner of congressional elections under the Elections Clause (Art. I §4) provides solid constitutional basis for AVR for federal elections. NVRA (1993) precedents: <i>ACORN v. Edgar</i> (7th Cir. 1995); <i>Voting Rights Coalition v. Wilson</i> (9th Cir. 1995). Purcell principle constrains implementation timing — Sec 7(a)(2) binds the 12-month lead-time requirement operatively. Sec 7(a)(3) preemption provision tracks the NVRA framework.
Article V convention — use Congressional proposal route [Source 270]	Constitutional amendment through Article V state convention route carries runaway convention risk under current law. The 1787 Philadelphia Convention precedent — authorized to revise Articles of Confederation, instead drafted an entirely new Constitution — is the cautionary case. Current state application counts: Convention of States movement at approximately 20 states (Kansas #20, 2026); Balanced Budget Amendment proponents claim 28-33 depending on aggregation and rescission assumptions. Neither is at 34 needed for a call. RECOMMENDATION: Congressional proposal route (two-thirds Congress + three-fourths States) rather than convention route. Sec 3(c) binds this preference operatively. Invest in Article V ratification strategy for willing state legislatures.
Financial disclosure and candidate ethics — narrow tailoring required [Source 268]	<i>AFPF v. Bonta</i> (2021) [Source 268] imported narrow-tailoring requirements into exacting scrutiny for compelled disclosure. Candidate financial disclosure is distinguishable: applies only to voluntary office-seekers; precisely tailored to anti-corruption; not a blunderbuss general mandate. Sec 5(b)(2) binds narrow-tailoring requirements operatively. Keep disclosure thresholds proportionate to anti-corruption interest; require only conflict-relevant information; include confidentiality protections for sensitive categories; target officials and candidates, not ordinary donors.

Sec 8 — Two-Track architecture as DIR-specific C-with-B-fallback variant	The Two-Track architecture is the DIR-specific instantiation of the C-with-B-fallback pattern established in BWDS Sec 204(f) and NFSA Sec 3(e)(1). Track A (statutory) is the primary route operative where court composition allows; Track B (Article V amendment) is the operative fallback where Track A is blocked. Sec 8(b) binds Track A invalidation fallback architecture in operative bill text — Sec 5(c) Foreign National Prohibition, Sec 6 Article XXIX upon ratification, and Sec 7 Elections Clause provisions all remain operative independent of Track A invalidation. Sec 8(c) no-interruption provision parallels BWDS Sec 204(f)(e) and NFSA equivalents.
Title V — Implementation, Constitutional Defense, and Track B coordination	Title V implements the canonical structural pattern (501 timeline / 502 coordination / 503 annual reporting) adapted for DIR's Two-Track architecture. Sec 501(b) binds Track B ratification status reporting operatively. Sec 502(b) folds in Constitutional Defense Coordination — DOJ litigation defense for Sec 4 term limits under Booth, plus inter-agency coordination for Track A→Track B transition upon final judgment or Article XXIX ratification. Sec 503(2)–(4) bind Track B ratification accounting and post-Callais redistricting landscape monitoring as operative reporting requirements.
Interaction with Bill 3 (ACFM Act) and political timing	This bill expands and complements the Anti-Corruption Act. Sec 502(a)(5) binds ACFM coordination operatively. Counsel to audit for overlap and ensure consistency. The Phase III preconditions are strict for good reason — do not introduce before Senate vote count shows 60+ for cloture (Track A statutory) or 67 (amendment proposal). Post-Callais, the redistricting provisions need revision regardless of political timing — this bill version implements that revision in Sec 7(c)/(d).

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Legal disclaimer applies — see page 1. This framework requires licensed legislative counsel review before introduction.

Originally conceived and authored by a concerned American citizen. Developed with the assistance of Claude (Anthropic). The ideas belong to anyone willing to fight for them.